23STCV24928 23STCV24928

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CO%2C07%2F09%2F2026

Source SHA-256: 48db63c200f2a2f2b313d8798b1b05cc155b77b71964353d93b867f264a7520d

Case Number: 23STCV24928 Hearing Date: July 9, 2026 Dept: O

TENTATIVE RULING

July 9, 2026

23STCV24928 (Greene, et. al. v. Koral, et. al.)

RELEVANT BACKGROUND

On October 12, 2023, plaintiffs Anne Greene (Anne) and Mathew Greene (Mathew) (Plaintiffs) filed their complaint alleging six causes of action against the following defendants: Peter Koral (Koral); Alberto Daniel Driz (Driz); LA Metro BP Holding Co., LLC; Culver City BP, LLC; Rollings Hills BP, LLC; Santa Ana BP, LLC; South Gate BP, LLC; West Covina Bp, LLC; Whittier BP, LLC; Cerritos BP, LLC; BP Farmers Market, LLC; Gateway USC BP, LLC; Blaze Pizza International; Blaze Pizza Operations, LLC; Blaze Pizza, LLC; and Does 1-100.

On February 5, 2024, Plaintiffs filed their first amended complaint (FAC) alleging seven causes of action: 1. Intentional Violation of Uniform Voidable Transactions Act, Cal. Civ. Code §§ 3439 et seq.; 2. Constructive Violation of Uniform Voidable Transactions Act, Cal. Civ. Code §§ 3439 et seq.; 3. Common Law Fraudulent Transfer; 4. Aiding and Abetting; 5. Civil Conspiracy; 6. Imposition of a Constructive Trust; and 7. Violation of Cal. Bus. Prof. Code §§ 17200, et seq. (UCL).

This action arises in

connection with underlying litigation regarding an assault that occurred on April 17, 2015. (FAC ¶ 34.) Plaintiffs allege that, "Driz and several associates attacked a thirdparty, striking that individual in the head near the valet stand for the restaurant 'The Nice Guy' on La Cienega Boulevard in West Hollywood. Plaintiffs attempted to assist this third-party, but Driz and his associates attacked Plaintiffs, causing them to sustain severe personal injuries." (Id.) On or about April 30, 2015, the Los Angeles County Prosecutor's Office filed criminal charges against Driz and his associates based on the events of April 17, 2015. (Id. ¶ 35.) On December 12, 2016, Plaintiffs filed the action that eventually resulted in the judgment against Driz. (Id.) On October 22, 2021, the Honorable Susan Bryant-Deason entered Judgment against Driz in Plaintiffs' favor in the amount of $48,395,402.00. (Id. ¶ 40.) Therefore, including post-judgment interest, Driz owes $59,479,937.91 as of the date of the filing of this first amended complaint. (Id.)

Driz owned Blaze Pizza
Franchises with Koral, with options to own approximately 15 more in favorable markets. (Id. ¶ 41.) Plaintiffs further allege that fifteen days after Plaintiffs filed their original Complaint, Driz assigned his entire forty-nine percent (49%) interest in LA Metro BP Holding Co., LLC to Koral. (Id. ¶ 62.) Driz allegedly transferred the assets to Defendants to avoid paying any judgment to Plaintiffs. (Id. ¶ 73.) Plaintiffs allege that the "Blaze Pizza Defendants conjured up, actively participated in, and benefitted financially from, the December 22-23, 2016 transfers from Driz to Koral." (Id. ¶ 67.)

INSTANT MOTIONS

On September 17, 2025, defendants Peter Koral, LA Metro Holding Co., LLC, Culver City BP, LLC, Rolling Hills Bp, LLC, Santa Ana BP, LLC, South Gate BP, LLC, West Covina BP, LLC, Del Amo BP, LLC, BP Farmers Market, LLC, Gateway USC BP, LLC (Defendants) filed the instant motion for protective order.
Plaintiff filed an opposition, and Defendants filed a reply.

On September 17, 2025, Defendants
filed the instant motion to quash deposition subpoena to SLTP, LLP. Plaintiff filed an opposition, and Defendants filed a reply.

On April 30, 2026, Defendant Koral
filed a motion for monetary, issue, and evidence sanctions. No opposition has been filed.

DISCUSSION

I.
PROTECTIVE
ORDER

Code
of Civil Procedure, section 2025.420 provides, in part:

(a) Before,
during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The
court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.

(Code
Civ. Proc., § 2025.420, subd. (a)-(b).)

Civil Code section 3295, subdivision
(c) provides:

No
pretrial discovery by the plaintiff shall be permitted with respect to the evidence referred to in paragraphs (1) and (2) of subdivision (a) unless the court enters an order permitting such discovery pursuant to this subdivision. However, the plaintiff may subpoena documents or witnesses to be available at the trial for the purpose of establishing the profits or financial condition referred to in subdivision (a), and the defendant may be required to identify documents in the defendant’s possession which are relevant and admissible for that purpose and the witnesses employed by or related to the defendant who would be most competent to testify to those facts. Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting

the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial.

(Civ. Code, § 3295, subd. (c).)

Here, Defendants move for a protective order pursuant to Code of Civil Procedure section 2025.420 and Civil Code section 3295(c) on the following grounds: (a) California discovery law authorizes a party to move for a protective order to protect that party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense; and (b) California law requires that a Plaintiff seeking punitive damages make a showing of substantial probability of success on the merits and obtain from the Court permission to conduct discovery into a defendant's financial condition. (Code Civ. Proc. § 2025.420; Civ. Code. § 3295, subd. (c).)

Defendants assert that Plaintiff Matthew Greene has issued twelve notices of depositions for PMKs for deposition on topics about which such PMK(s) have already been deposed regarding and bearing document requests that ask for Franchisee Defendants' financial information, including personal financial information, whether or not it relates to this case. (Post Decl. ¶ 3). Defendants state that Plaintiff's prior discovery included the substantive topics upon which he now seeks to depose Franchisee PMKs—that is, when, how, and in what amount payments to Driz were made. (Compare Post Decl., Exh. A, Exh. B.).

Defendants further argue that the requests for every account number that were ever used to pay Driz any money at all (whether or not associated with Franchisee Defendants or relevant to the case) and every account number ever associated with Koral or his corporations at all, whether or not relevant to the case, violates Civil Code section 3295(c). Defendants state that the requests as drafted seek information related to any bank account ever held by Koral or a business affiliated with Koral, whether or not such account has any bearing on this case.

Additionally, Defendants seek

monetary sanctions in the amount of $4,812.00 in connection with brining the instant motion for protective order. (Code Civ. Proc. § 2025.420, subd. (h).)

In opposition, Plaintiffs argue that the disputed topics are case-issue discovery directed at transactions, consideration, payors, and payment pathways central to liability, damages, alter ego/agency, and tracing, not punitive-damages-related "financial condition" discovery. Plaintiffs also contend that Defendants overstate any duplication and ignore that the PMK depositions of the separate franchisee entities are warranted and proportional.

In reply, Defendants argue that Plaintiff's characterization of the financial account discovery as transaction tracing cannot be squared with the actual topics at issue, which seek the last four digits of every account ever held by Koral or any corporate entity with which he is affiliated. Additionally, Defendants maintain that the document requests propounded as part of the Notice of Deposition are unreasonably cumulative or duplicative both of the prior notice of deposition and the twelve special interrogatories propounded by Plaintiff on Franchisee Defendants seeking the same information.

Defendant's motion for a protective order is GRANTED IN PART and DENIED IN PART. The Court agrees with Defendants that the requests are overly broad and not sufficiently tailored to the relevant issues in the present case. But Defendants have not shown good cause in support of their request to bar all the requests. Nor have Defendants adequately supported their generalized claims of annoyance, embarrassment, oppression, undue burden, and expense. The Court also disagrees with Defendants' contention that the requests violate Civil Code section 3295(c). Plaintiff correctly points out that the requests at issue are relevant to issues central to Plaintiffs' claims, not punitive-damages-related financial condition discovery. Lastly, the Court agrees with Plaintiff that the deposition subpoenas and requests are not duplicative because they are addressed to the separate franchise entities.

The parties are ordered to meet and confer and file, within twenty (20) days, a proposed order limiting the discovery requests to issues directly relevant to the claims at issue in the present case.

The Court finds that monetary
sanctions are not appropriate. Defendant's request for sanctions is denied.

II. MOTION TO QUASH

Defendants' motion to quash the deposition subpoenas is brought on the same grounds as the motion for protective order above, as well as Code of Civil Procedure section 2025.420. Defendants also request monetary sanctions in the amount of $5,860.00 in connection with the motion to quash.

For the reasons set forth above, Defendants' motion to quash is DENIED, conditioned on the parties' meeting and conferring and filing the proposed order described above.. Defendants' request for monetary sanctions is DENIED.

III. MONETARY, ISSUE, AND EVIDENTIARY SANCTIONS

Monetary Sanctions

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).)

Issue Sanctions

The court may order that designated facts shall be taken as established by the party adversely affected by the discovery misuse or it may prohibit the party who committed such misuse from supporting or opposing designated claims or defenses. (Code Civ. Proc. § 2023.030(b); NewLife Sciences, LLC v. Weinstock (2011) 197 Cal.App.4th 676, 686-687; See e.g., Juarez v. Boy Scouts of America, Inc. (2000) 8 Cal.App.4th 377, 387 [trial court properly imposed issue sanctions where the Plaintiff repeatedly failed to answer interrogatories pertaining to the issues on multiple occasions and had a pattern of discovery abuse].)

Evidentiary Sanctions

The court may prohibit the party who disobeyed the court order from introducing designated matters in evidence. (Code Civ. Proc. § 2023.030(c); See, e.g. Waicis v. Sup.Ct. (Schwartz) (1990) 226 Cal.App.3d 283, 287.) But "sweeping evidentiary conclusions" are improper when they provide a windfall by relieving a party of the burden to prove theory of liability. (Rutledge v. Hewlett-Packard Co. (2015) 238 Cal.App.4th 1164, 1194 ["sweeping evidentiary conclusions that were the heart of appellants' theory of HP's liability…would provide a windfall to appellants relieving them of their burden of proving their theory of liability…the purpose of discovery sanctions is not avoidance of a decision on the merits."].)

Here, Koral moves for monetary sanctions in the amount of $3,250.00, issue sanctions, and evidentiary sanctions on the grounds that Anne has delayed responding to discovery that was served on September 12, 2024. (Post Decl. ¶ 2-5.) Koral states that when responses were provided on December 11, 2024, they were unverified. (Id. ¶ 6.) Koral moved to compel the responses. (Id. ¶ 7.) The Court granted the motions to compel on July 15, 2025, and awarded $6,000 in sanctions. (Id. ¶ 9, Ex. E.) Anne had 60 days to comply. (Id.) Despite being served with the Court's orders, Anne did not comply. (Id. ¶ 11).

No opposition has been filed.

Koral's motion is DENIED IN PART and GRANTED IN PART.

Koral's request for issue and evidentiary sanctions is denied. The requested relief set forth in the motion with respect to the evidentiary and issue sanctions is vague and unclear. Koral states that he is "seeking information related to (1) the mental, emotional, physical and monetary damages sustained by Plaintiff; (2) facts underlying and/or supporting Plaintiff's responses to Requests for Admissions, Set One, and (3) documents supporting Plaintiff's allegations in the First Amended Complaint, issue sanctions that Plaintiff has not suffered such damages, that Plaintiff's responses to Requests for Admissions are unsupported, and that there are no documents supporting Plaintiff's First Amended Complaint are appropriate." (Motion, at p. 2-3.) It is entirely unclear to the Court what exact issue and evidentiary sanctions Koral is requesting. The Court notes that the proposed order is not helpful in that respect, as it is similarly vague and unclear. Nor has Koral adequately supported his contention that issue or evidentiary sanctions are appropriate at this time.

But Koral's request for monetary sanctions in the amount of $3,250.00 is GRANTED. The Court finds that monetary sanctions are appropriate given that Anne has failed to provide verified responses to the discovery served in 2024, and the requested amount is reasonable.